

## CITY COUNCIL AGENDA ITEM COVER SHEET

DATE OF COUNCIL MEETING: April 8 2013

TYPE OF DOCUMENT: ( ☐ \*ORDINANCE ) ( ☐ \*RESOLUTION ) \*NEED SPONSOR  
 ( ☐ PRELIMINARY PLAT/PRELIMINARY ZONE CHANGE ) ( ☒ LEASE/CONTRACT )  
 ( ☐ CHANGE ORDER/CONTRACT MODIFICATION ) ( ☐ CONSIDERATION OF BID )  
 ( ☐ APPLICATION/LICENSE/PERMIT ) ( ☐ APPOINTMENT )  
 ( ☐ ANNOUNCEMENT/REPORT/MOTION )

SPONSOR(S) : (ORDINANCES/RESOLUTIONS ONLY) \_\_\_\_\_

EXACT WORDING OF ENTITLEMENT/ITEM: \_\_\_\_\_

Contract between City of Cheyenne & Noel Griffith, jr & Associates Architects for  
 Design of Household Hazardous Waste Facility

1% Sales Tax Funding/Years: \_\_\_\_\_

Other Funding \_\_\_\_\_ Grant SLIBCONTACT PERSON: Craig LaVoy PHONE: 637-6294 DEPT. Public Works

OTHER CITY DEPTS AFFECTED: \_\_\_\_\_

OTHER GOV'T AGENCIES AFFECTED: \_\_\_\_\_

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: \_\_\_\_\_

CONTRACT TERM: 2 years STARTING DATE: April 24 2013

|                                                         | YES                                     | NO                           | N/A                                     |
|---------------------------------------------------------|-----------------------------------------|------------------------------|-----------------------------------------|
| Is funding budgeted?                                    | ( <input checked="" type="checkbox"/> ) | ( <input type="checkbox"/> ) | ( <input type="checkbox"/> )            |
| Were Bids called for?                                   | ( <input type="checkbox"/> )            | ( <input type="checkbox"/> ) | ( <input checked="" type="checkbox"/> ) |
| Affected parties notified of Council procedure & dates? | ( <input checked="" type="checkbox"/> ) | ( <input type="checkbox"/> ) | ( <input type="checkbox"/> )            |
| Has bond, insurance or other security been arranged?    | ( <input type="checkbox"/> )            | ( <input type="checkbox"/> ) | ( <input checked="" type="checkbox"/> ) |
| Have legal descriptions been checked?                   | ( <input type="checkbox"/> )            | ( <input type="checkbox"/> ) | ( <input checked="" type="checkbox"/> ) |

Agenda item reviewed and/or approved by:

Risk Mgr ( ☒ ) City Attorney ( ☒ ) Dept. Head ( ☒ )

General Comments: \_\_\_\_\_

Submitted by: Craig LaVoy Title: Public Works Date: April 2 2013

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO:

Craig LaVoyMoniet Flores

By: BS  
Date: 3-24-13

Approved as to  
form only

D. White  
Date: April 3, 2013

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

RFP- 9-13

CONTRACT # \_\_\_\_\_

PROJECT NAME – **Household Hazardous Waste Facility**

PROFESSIONAL SERVICES AGREEMENT

THIS AGREEMENT made and entered into this 24 day of April, 2013, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "City" and Noel Griffith, jr. & associates architects, hereinafter referred to as "Consultant".

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK:

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work attached hereto as Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE:

The Scope of Work shall be completed and submitted to the City in accordance with the project schedule given in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne which is attached to the agreement, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne must be agreed upon in writing by the parties.

3. CONSULTANT RESPONSIBILITY:

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies.

4. COMPLIANCE WITH LAWS:

The Parties agree that they will perform their obligations as provided in this agreement in

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE:**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and Subcontractors are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the consultant while performing the duties and responsibilities of the contract. It is the responsibility of the consultant to familiarize himself with the requirements of this policy and to inform all his employees and sub-contractors of the requirements and ensure their compliance. If the consultant, his employees or sub-consultants are found in violation of this policy, the contract may be terminated.

6. **INDEMNIFICATION / HOLD HARMLESS:**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or subcontractors in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **GOVERNING LAW, JURISDICTION AND VENUE:**

The construction, interpretation and enforcement of this Agreement is governed by the laws of the State of Wyoming. The courts of the State of Wyoming have jurisdiction over this Agreement and the parties, and the venue would be in the First Judicial District, Laramie County, Wyoming.

### **INSURANCE REQUIREMENTS:**

The Consultant must provide proof of the following insurance coverages:

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

### **Commercial General Liability Insurance**

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per

occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

### **Business Automobile Insurance**

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

### **Workers' Compensation**

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

### **Professional Liability Insurance**

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

(3) Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and

(4) In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

### **Additional Insurance Information**

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

8. DUTIES, RESPONSIBILITIES AND LIMITATIONS OF AUTHORITY OF THE CONSULTANT.

The Engineer shall supervise and be accountable for all engineering matters related to the project. This responsibility shall extend to supervision and responsibility for the actions of sub-contractors or consultants working for the Engineer.

9. MINORITY BUSINESS ENTERPRISES:

All parties to this agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of age, race, color, disability, national origin or sex.

10. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant according to the fee schedule given in the Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne which is attached to this agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the City, in completing the work as described in Scope of Services Agreement for Design and Construction Administration Services for the City of Cheyenne. Progress and final payment shall be made following acceptance of the work by the City; however, in no case more than 60 days following receipt of the invoice by the City. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the City and shall be delivered to the City along with final invoice, immediately upon their preparation. A portion of the payment may be held until any claims are resolved.

11. CITY REPRESENTATIVE:

Prior to commencement of work, the City will designate in writing, a City Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the City Representative.

12. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this agreement. Nothing

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

in this agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation of any kind on the behalf of the City of Cheyenne.

13. TAXES:

The Consultant agrees to pay all taxes, excises, license fees, permit fees, bills, debts and obligations incurred by/or in connection with its operations under this agreement.

14. APPROVAL OF PLANS:

The City's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the City's rights under this agreement or any of its legal rights under statute or common law arising out of the performance of this agreement.

15. DEFAULT:

Each and every term and condition in this agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

16. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages;
- b. Treat the agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

17. TERMINATION BY CITY:

The City Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and

## PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Building**

- b. Deliver to the City Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

In the event of termination for convenience, the City will pay consultant for accepted work done to date of termination.

The agreement may be terminated in fifteen (15) days by either party with cause.

18. ADDITIONAL REMEDIES OF CITY:

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant.

19. GOVERNMENTAL IMMUNITY.

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

20. ENTIRETY OF AGREEMENT:

This agreement consisting of the submitted proposal consisting of seven (21) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Household Hazardous Waste Facility**

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

CITY OF CHEYENNE, WYOMING

By: \_\_\_\_\_  
Richard L. Kaysen, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
Carol Intlekofer, City Clerk

Date: \_\_\_\_\_

CONSULTANT FIRM

\_\_\_\_\_

By: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

ADDRESS: \_\_\_\_\_

\_\_\_\_\_

## **EXHIBIT "A"**

### **SCOPE OF WORK**

#### **A. Project Description**

Design site improvements necessary for the construction of a new metal building, approximately 60' X 220', preparation of a complete set of construction documents, plans, specifications, cost estimates, and other required City bidding documents for the letting of bids and the award of a contract for the construction of said metal building, design of improvements for Avenue D and Entry as described in Exhibit E attached hereto, and construction administration.

The principal purpose of this Project is to construct a new metal building, as described in the preceding paragraph, which will serve as the Hazardous Materials Building located at the City's Transfer Station, 220 N. College Drive, Cheyenne, Wyoming. Site design shall include recommendations for the location of the new metal building, (see exhibit "D" for Transfer Station proposed location), removal and disposal of old structure, design of improvements to Avenue D and Entry, construction administration and inspections. Noel Griffith Jr. & Associates Architects will be providing design and construction administration services only. The actual construction of the Hazardous Materials Building and improvements to Avenue D shall be the responsibility of contractors engaged by the City pursuant to its normal bidding processes.

#### **B. Project Budget**

The total budget for the Project is \$1,875,000, which is comprised of the following:

1. Site design, recommendations for location of new metal building, design of improvements to Avenue D and Entry, preparation of construction documents, plans, specifications, cost estimates, and other required City bidding documents for the letting of bids and the award of a contract for the construction of said metal building, construction administration and inspections, all to be performed by Noel Griffith Jr. & Associates Architects, or sub-consultants engaged by said firm, for a price not to exceed the sum of \$202,900.00 as specified in Exhibit B.
2. The supply and installation of a new metal building, as described in the preceding paragraphs, including all labor, materials, equipment, supplies, and fixtures necessary to finish and complete said building, and the construction of improvements to Avenue E and Entry, all to be performed pursuant to a contract to be let and awarded by the City of Cheyenne.

#### **C. General Conditions**

The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance

- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Film and processing
- Overtime engineering and inspection
- Special inspections, including vacuum excavation pot-holing
- Survey materials, stakes, etc
- Additional required services

Any changes in the Consultants or Sub-consultants staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

#### **D. Preliminary Design Phase**

Upon receipt of Notice to Proceed with this project, the Consultant shall proceed with the following tasks:

1. Review all locations, standards, zoning requirements and Federal, State and local permit requirements for installation, operations and placement Hazardous Materials Building drop off location.
2. Perform engineer's estimate of project for City's Representative for review.
3. Perform all field reviews and testing necessary for preliminary design of the Project.
4. Furnish five copies of your above Hazardous Materials Building preliminary design for review by city's representative.
5. Furnish five copies of your revised Hazardous Materials Building for review by City's Representative for the Final Design Phase.

The services will be completed and the data submitted within the stipulated period indicated in Exhibit C "Project Schedule."

#### **E. Final Design Phase**

After acceptance by City Representative of the Preliminary Design Phase documents and opinion of probable Project Cost, indicating any specific modifications or changes in the extent of the Project desired by the City, and upon written authorization from City Representative to proceed with the Final Design Phase, Consultant shall:

1. Prepare final drawings showing the character and extent of the Project and Specifications incorporating any modifications or changes indicated during review of Preliminary documents.
2. Advise City Representative of any adjustments to the latest opinion of probable Project

Cost caused by changes in extent or design requirements of the Project Cost. The Consultant shall provide a summary of the probable Project Cost based on the Final Design Drawings and Specifications showing estimated construction quantities, bid prices, and items of work. The bid tabulation shall be laid out using standard numbering for work items and basic pay units.

3. Furnish five copies of the above final design documents and present and review them in person with the City Representative.

F. **Construction Administration Phase**

1. Prepare City of Cheyenne Bidding and Construction Document.
2. Conduct a Pre-Bid meeting to answer questions associated with Hazardous Materials Building.
3. Submit a review of all submitted bids and provide City Representative with detailed recommendation of responsible successful bidder.
4. Attend City Council and Finance meeting (3 meetings) to provide detailed information on successful bidder's documentation.
5. Administer, install and inspect all work under the City's Bidding and Construction Documentation. Cost of onsite inspection to be shown as an itemized hourly price.
6. Conduct training for city personnel to include operations and maintenance Hazardous Materials Building.

G. **Avenue D Entry**

1. Cost for Avenue D and entry-(a dust control road on Avenue D only)
2. Cost for Avenue D Only- (if Avenue D needs to be complete)

The services will be completed and the data submitted within the stipulated period indicated in Exhibit C "Project Schedule."

**“EXHIBIT B”**

**COMPENSATION SCHEDULE**

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Payment Schedule based upon the following shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase:

|                                                    |                      |
|----------------------------------------------------|----------------------|
| Preliminary Design Phase                           | <u>\$ 51,212.00</u>  |
| Final Design Phase                                 | <u>\$ 82,305.00</u>  |
| Operations Plan                                    | <u>\$ 5,000.00</u>   |
| Construction Administration<br>Phase               | <u>\$ 44,383.00</u>  |
| Avenue D Entry<br>See Attached letter<br>Exhibit E | <u>\$ 20,000.00</u>  |
| Total Contract Amount                              | <u>\$ 202,900.00</u> |

- Construction Administration = \$120.00/hour not to exceed \$44,383.00.

**“EXHIBIT C”**

**PROJECT SCHEDULE**

The key milestones for the **Hazardous Materials Building**

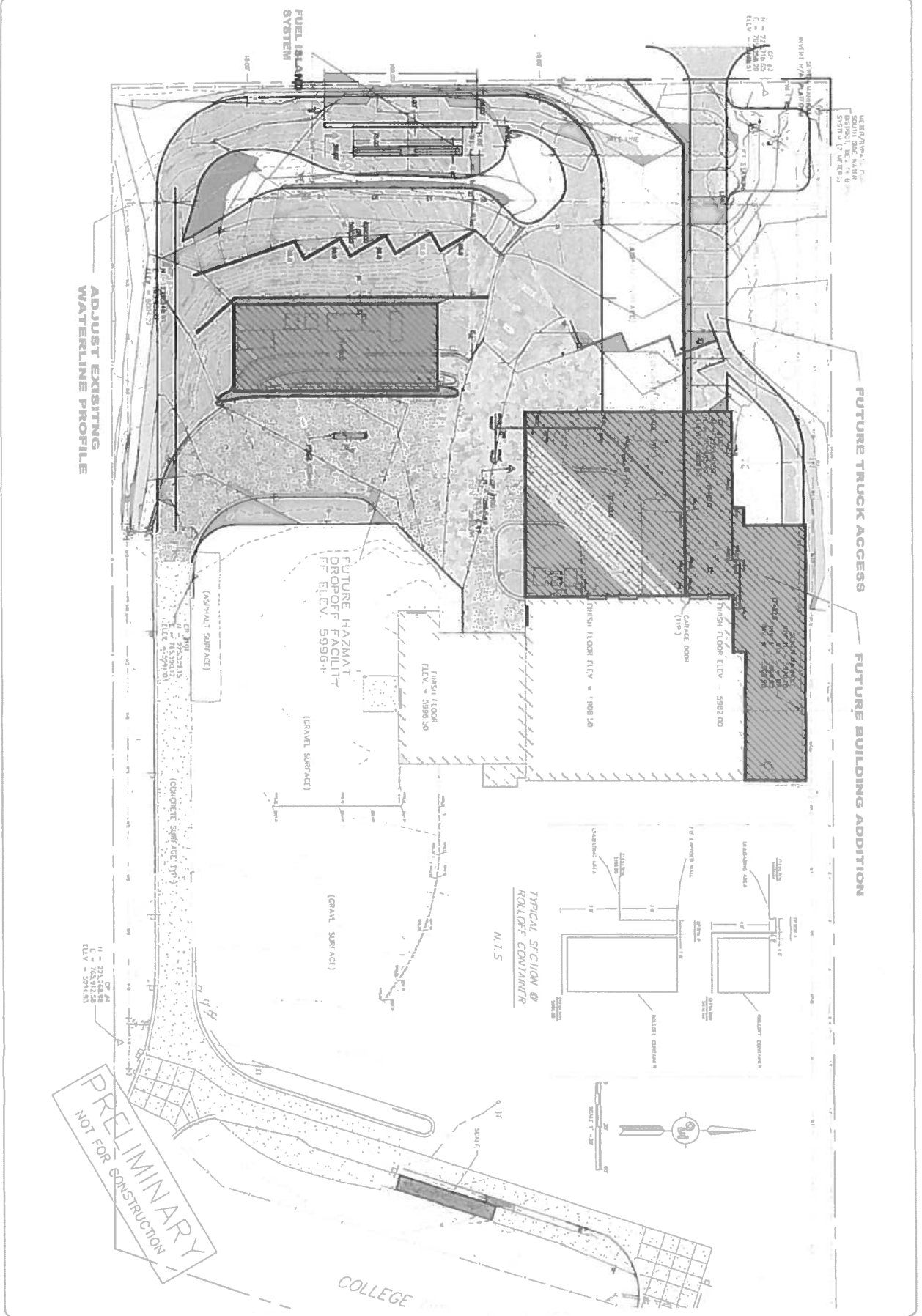
**The designer should complete the following schedule as part of the proposal and include any other key dates needed.**

| <b>Date</b>        | <b>Schedule Item</b>                          |
|--------------------|-----------------------------------------------|
| April 24, 2013     | Notice-to-proceed issued by City              |
| April 24, 2013     | Hold scoping meeting with City Representative |
| June 14, 2013      | Submit preliminary design phase documents     |
| June 20, 2013      | Meet with City to discuss review of design    |
| October 14, 2013   | Submit final design phase documents           |
| October 24, 2013   | Conduct Pre-Bid meeting                       |
| November 7, 2013   | Bid Opening                                   |
| December 15, 2013  | Start Date                                    |
| September 15, 2014 | Completion Date*                              |

\*may vary depending on weather conditions and WDEQ soils results from existing fuel tank.

**“EXHIBIT D”**

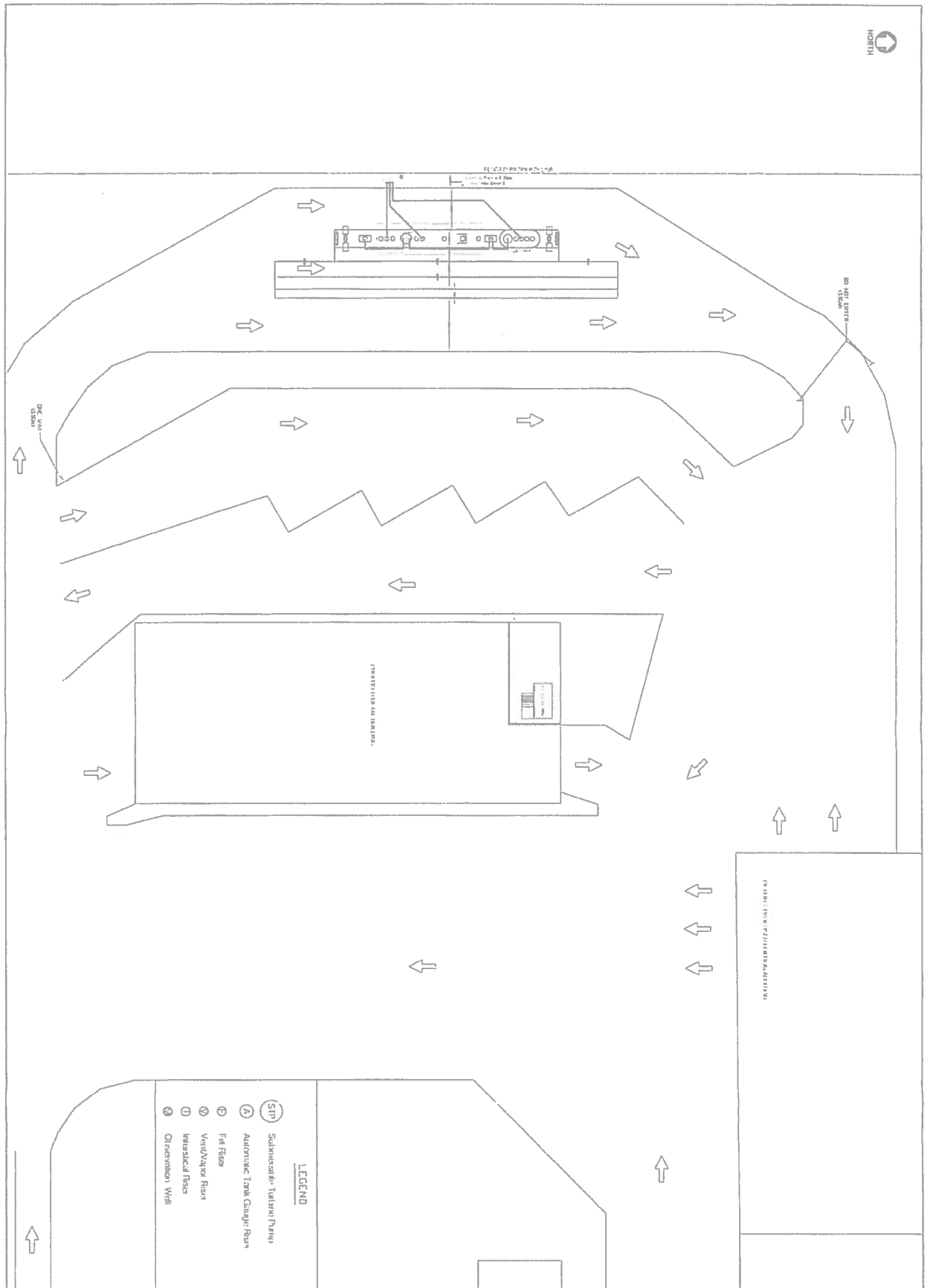




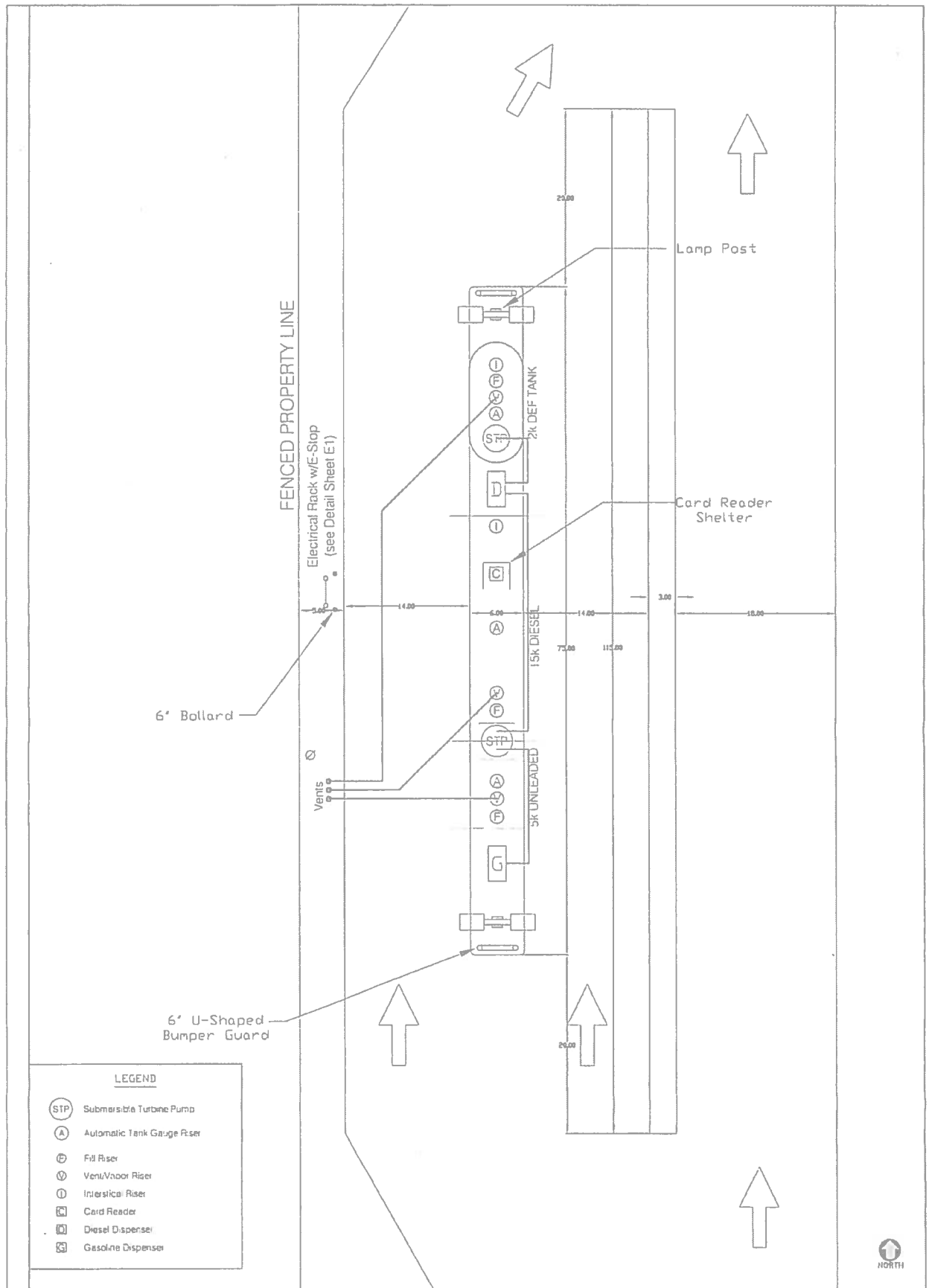
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|                                                                                                                                                                                                                                                                        |                                                   |                                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|---------------------------------------------------------------------------------------------------|
| <br>Noel Griffith and Associates<br>Engineering & Architecture<br>2515 Warren Ave., Ste. 504<br>Cheyenne, WY 82001<br>Phone: (307) 635-1111<br>Fax: (307) 635-1112<br>www.nogri.com | PROJECT:<br>CHEYENNE TRANSFER STATION             | PREPARED FOR:<br>NOEL GRIFFITH AND ASSOCIATES<br>2515 WARREN AVE., STE. 504<br>CHEYENNE, WY 82001 |
|                                                                                                                                                                                                                                                                        | DRAWING TITLE:<br>FUTURE PLAN AT TRANSFER STATION |                                                                                                   |

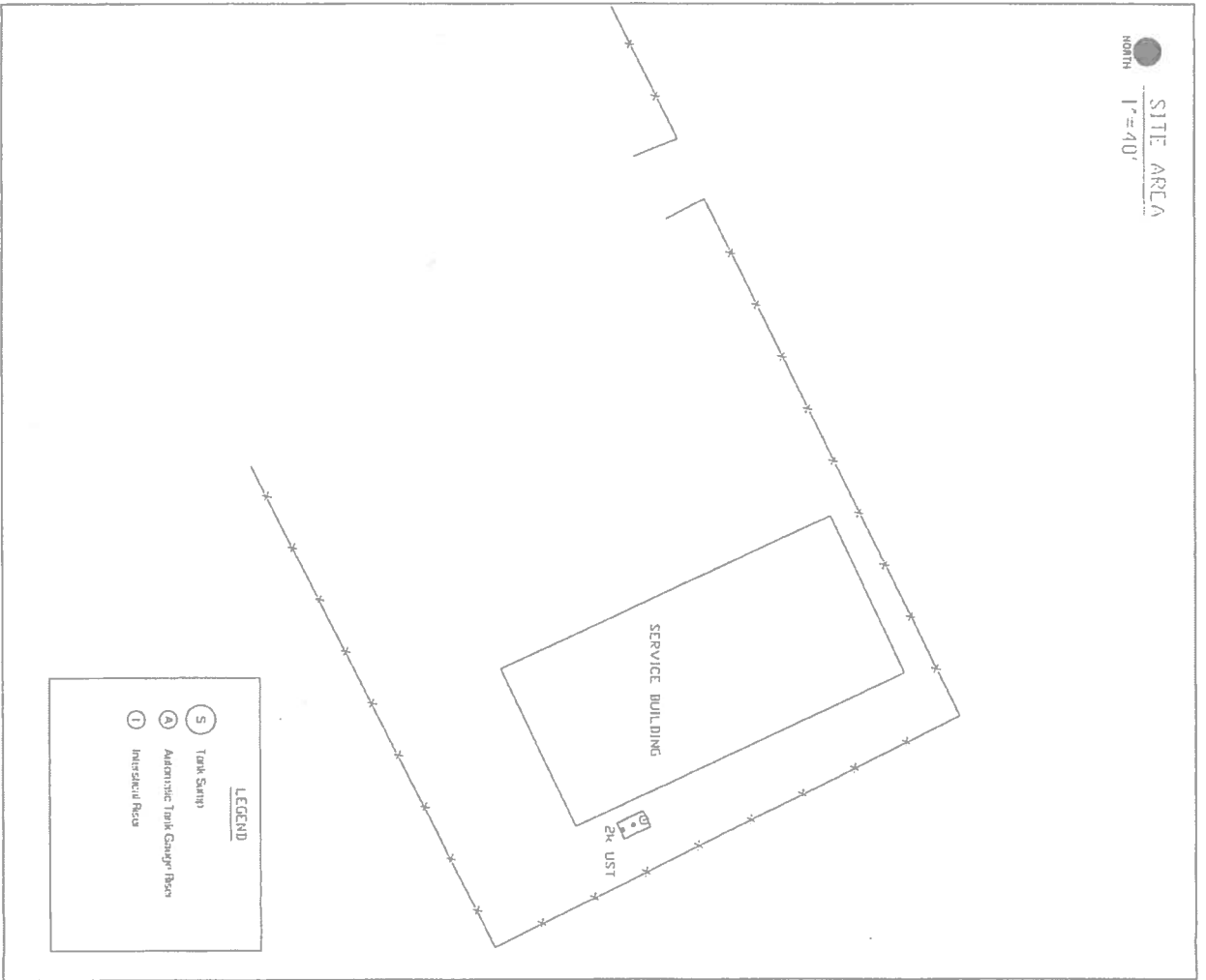
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| DATE: 11/11/03 | DESIGNER: JG | CHECKER: JG | SCALE: 1" = 20' |
| APP. NO.: 3280 |              |             |                 |



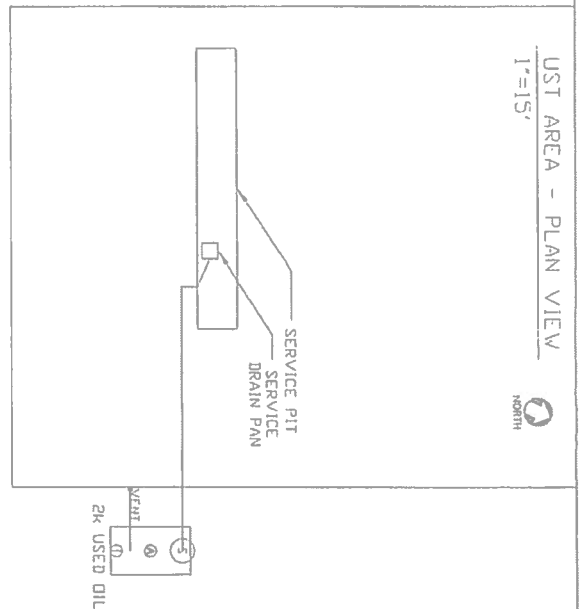
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|-----------------|--------------------------------|-----------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sheet No.<br>S1 | Sheet Title<br><br>SITE<br>MAP | Designed By:<br>Drawn By: ARG<br>Checked By:<br>Date: JULY 2012<br>Scale: 1" = 30'<br>SCALE IN FEET | CITY OF CHEYENNE<br>TRANSIT SERVICES<br><br>220 NORTH COLLEGE DRIVE<br>CHEYENNE, WYOMING |  ENVIRONMENTAL<br>CONSTRUCTION<br>COMPLIANCE<br><br>P.O. BOX 1489<br>FORT COLLINS, CO 80522<br>Tel. (970) 483-7780<br>Fax. (970) 493-7986 |
|-----------------|--------------------------------|-----------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|



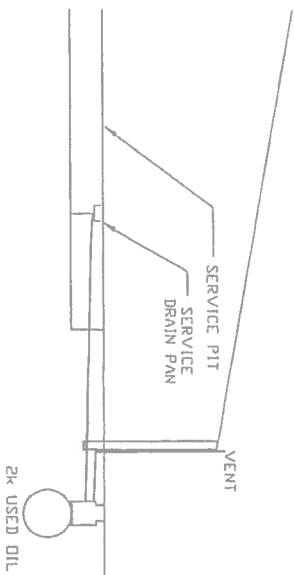
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| Sheet No.<br><b>F1</b> | Sheet Title            | Designed By:    | <b>CITY OF CHEYENNE<br/>TRANSIT SERVICES</b><br><br>220 NORTH COLLEGE DRIVE<br>CHEYENNE, WYOMING | <br><b>ENVIRONMENTAL<br/>CONSTRUCTION<br/>COMPLIANCE</b><br><br>P.O. BOX 1489<br>FORT COLLINS, CO 80522<br>Tel. (970) 493-7780<br>Fax. (970) 493-7986 |  |
|                        | <b>FUEL<br/>SYSTEM</b> | Drawn By: ARG   |                                                                                                  |                                                                                                                                                       |  |
|                        |                        | Checked By:     |                                                                                                  |                                                                                                                                                       |  |
|                        |                        | Date: JULY 2012 |                                                                                                  |                                                                                                                                                       |  |
|                        |                        | Scale: 1" = 10' |                                                                                                  |                                                                                                                                                       |  |
|                        |                        | SCA E IN FEET   |                                                                                                  |                                                                                                                                                       |  |



UST AREA - PLAN VIEW  
1" = 15'



UST AREA - PROFILE VIEW  
1" = 15'



|                 |                                 |                                                                                                     |                                                                                  |                                                                                                                                                                                                                                |
|-----------------|---------------------------------|-----------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sheet No.<br>S2 | Sheet Title<br><br>TANK DETAILS | Designed By:<br>Drawn By: ARG<br>Checked By:<br>Date: JULY 2012<br>Scale: 1" = 15'<br>SCALE IN FEET | CITY OF CHEYENNE<br>OIL & LUBE SHOP<br><br>2501 SEYMOUR AVE<br>CHEYENNE, WYOMING |  ENVIRONMENTAL<br>CONSTRUCTION<br>COMPLIANCE<br><br>P.O. BOX 1489<br>FORT COLLINS, CO 80522<br>Tel. (970) 493-7780<br>Fax. (970) 493-7985 |
|-----------------|---------------------------------|-----------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

**“EXHIBIT E”**



noel griffith, jr.  
& associates  
architects

March 18, 2013

City of Cheyenne  
Mr. Craig LaVoy, P.E.  
Public Works Department  
2101 O'Neil Ave.  
Cheyenne, WY 82001

**RE: FEE PROPOSAL FOR AVENUE D AND ENTRY ROAD  
AT THE TRANSFER STATION  
CHEYENNE, WYOMING**

Mr. LaVoy;

The following is the Fee Proposal for the West Entry Road work and Avenue D work needed for future Transfer Station project. The fee to complete the above-listed work will be as follows:

**Cost For Avenue D and Entry – (a dust control road on Avenue D only)**

|                                                    |                    |
|----------------------------------------------------|--------------------|
| Terracon.....                                      | \$ 1,000.00        |
| Hunter Engineering (retaining wall).....           | \$ 2,500.00        |
| Noel Griffith Jr., & Associates (City/County)..... | \$ 2,500.00        |
| AVI (grading).....                                 | <u>\$ 4,000.00</u> |
|                                                    | <b>\$10,000.00</b> |

**Cost For Avenue D Only – (If Avenue D needs to be complete)**

|                              |                    |
|------------------------------|--------------------|
| AVI (civil) – Surveying..... | \$ 5,000.00        |
| Finish.....                  | <u>\$ 5,000.00</u> |
|                              | <b>\$10,000.00</b> |

As always, if I can be of further assistance or if you have any questions, please don't hesitate to contact me.

Sincerely,

Noel R. Griffith, Jr., AIA  
NRG/pr